

Agency Disclosure in Michigan

The Michigan mandatory disclosure law states that agents are required to present sellers, buyers, landlords, and tenants of residential real property with an agency disclosure on all sales of one- to four-family dwellings and all vacant land to be used for residential dwellings or condominiums.

A listing agent must provide the form to the seller or landlord prior to entering into a listing agreement, and to the buyer, buyer's agent, tenant, or tenant's agent **at the first meeting** or first substantive contact with that person.

A buyer's agent must provide the disclosure form prior to entering into an agreement to act as the buyer's agent or tenant's agent. The buyer's agent must also provide the form to the seller, seller's agent, landlord, or landlord's agent **at the first meeting** with that person.

In all cases, the agent should obtain a signed acknowledgment from the person receiving the disclosure before the consumer discloses any confidential information to the licensee.

The disclosure includes the minimum duties an agent owes to any client (buyer client or seller client) as well as the services an agent should perform for the client. The disclosure also lists and describes the agency relationships available in Michigan. There's a space to indicate in which capacity the licensee is acting and whether the licensee and the licensee's broker or all affiliated licensees at the brokerage have entered in to the same agency relationship. Individuals sign and date the disclosure acknowledging that the disclosure was received and review prior to providing any confidential information to the licensee.

Licensees acting as agents must also disclose their agency relationship to the other party. For example, if Linda is acting as a seller's agent, she must disclose to prospective buyers that she represents the seller.